

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: August 10, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Cervantes v. Chapman Coast Roof Co., Inc. 2026-01556143 Demurrer to Complaint	Defendant Chapman Coast Roof Co., Inc.'s Demurrer to the Complaint is OVERRULED. Plaintiff's 12th cause of action under Labor Code sections 226 and 1174 for failure to provide itemized wage and hour statements seeks both statutory penalties and actual damages. Plaintiff alleges his claim for actual damages includes Plaintiff not being paid wages to which Plaintiff was entitled. (Compl., ¶ 139.) Thus, Plaintiff is not only seeking penalties within their cause of action and the statute of limitations as to the actual damages for unpaid wages is three years. (See <i>Falk v. Children's Hospital Los Angeles</i> (2015) 237 Cal.App.4th 1454, 1469; <i>Castillo v. Glenair, Inc.</i> (2018) 23 Cal.App.5th 262, 287; <i>Novoa v. Charter Communications, LLC</i> (E.D. Cal. 2015) 100 F.Supp.3d 1013, 1025.) Accordingly, Defendant's demurrer is overruled.
2	Fairon v. Vassallo 2026-01552552	Defendant Brian Theiss's Motion to Strike, joined by Defendants Sarie Vassallo, Mikala Vassallo, TheissCare LLC, American Built Science, LLC, and Maiden Legacies LLC, is GRANTED with 30 days leave to amend.